

CLIC Case 0002

Country/Court: Germany, Higher Regional Court Düsseldorf (Oberlandesgericht Düsseldorf)

Decision number/date: 7 StS 3/19, 2021-06-16

Crime / Issue: Crimes Against Humanity

Abstract prepared by: Philipp Gartner

The main accused, Defendant A., a joint German-Algerian national, traveled to Syria in late 2013 to join the terrorist organization "Islamic State" (IS). There, she married an IS fighter whose parents (Defendants C. and B., based in Germany) actively financed and supplied military equipment to support their sons' terrorist operations. Between September 2015 and October 2017, Defendant A. and her husband held five Yazidi women and two young girls as domestic and sexual slaves in their household.. The victims were subjected to continuous forced labor, physical abuse and systemic rape which Defendant A. explicitly condoned and facilitated. In late 2017, one of the enslaved minor girls was killed in an airstrike after being taken into a hazardous combat zone by Defendant A.'s husband. Defendant A. was eventually arrested upon returning to Germany in September 2018.

Regarding Defendant A., the Court evaluated charges under the German Code of Crimes Against International Law (VStGB) alongside the general Criminal Code (StGB). The defense contested the parameters of enslavement and accountability for acts committed abroad.

First, interpreting § 7 paragraph 1 number 3 of the VStGB, the Court held that "enslavement" does not require formal ownership but rather the de facto exercise of property rights, established here by the total destruction of the victims' freedom of movement and self-determination. Second, the Court determined that Defendant A. acted with full intent as a co-perpetrator; her active dominion over the house during her husband's absences and her physical punishments constituted direct execution of the crime. Third, the Court ruled that her facilitation of her husband's routine sexual abuse qualified as complicity in crimes against humanity via rape and torture, as she validated his actions under shared ideological mandates. Finally, the Court linked the death of the minor captive directly to the systemic oppression, finding the defendants liable for a crime against humanity resulting in death.

Regarding Defendants C. and B., the Court confirmed that providing commercial procurement networks and financial capital explicitly fulfilled the statutory definitions of supporting a foreign terrorist organization (§ 129a/b StGB), overriding defense claims of generic parental support.

he Higher Regional Court convicted Defendant A. under juvenile criminal law (due to her age at the start of the offenses) for membership in a foreign terrorist organization, in concurrence with crimes against humanity involving enslavement, persecution, complicity in rape, and deprivation of liberty resulting in death. She was sentenced to a single youth penalty of six years and six months, with foreign pre-trial detention in Turkey credited at a 1:1 ratio. Defendants C. and B. were found guilty of multiple counts of supporting a foreign terrorist organization and violating the Foreign Trade and Payments Act (AWG); they were sentenced to total prison terms of four years and six months, and three years, respectively.